

HOUSE BILL NO. 651

INTRODUCED BY A. REGIER

A BILL FOR AN ACT ENTITLED: "AN ACT ALLOWING FOR THE USE OF TEMPORARY DOOR LOCKS DURING SHELTER-IN-PLACE OR EMERGENCY LOCKDOWN SITUATIONS; PROVIDING AN EXCEPTION TO THE FIRE CODE; PROVIDING A DEFINITION; AMENDING SECTION 50-61-106, MCA; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. Temporary door locks -- limited exception to fire code. (1) A

temporary door locking device may be used in a public building as defined in 50-60-101 to secure a door to a room that may be used during a shelter-in-place or emergency lockdown situation.

(2) A temporary door locking device may be used to secure a fire exit, hallway, corridor, or entranceway leading to a fire exit if the temporary door locking device:

(a) is used only during a shelter-in-place or emergency lockdown situation; and

(b) is approved by the local fire department, law enforcement agency, or code official that has jurisdiction over the building.

(3) As used in this section, "temporary door locking device" means a device that prevents a door from opening, provided that the device:

(a) is meant only for temporary emergency use during an active threat situation;

(b) can be engaged or removed without opening the door;

(c) can be engaged and removed from the egress side of the door without the use of a key and removed from the ingress side of the door with the use of a key or other credential;

(d) does not modify the door closer, panic hardware, or fire exit hardware;

(e) is not permanently mounted to the door assembly, although individual parts of the device assembly, including but not limited to bolts, stops, brackets, and pins that do not prevent normal function of the door, may be permanently mounted;

- 1 (f) is installed at a height not to exceed 48 inches above the floor;
- 2 (g) does not affect the fire rating of the door and complies with national fire protection association
- 3 fire rating standards;
- 4 (h) can be removed with a single operation when engaged;
- 5 (i) is applied only for a finite period of time during an emergency situation, including but not limited
- 6 to a shelter-in-place or emergency lockdown situation or drill; and
- 7 (j) is integrated into building safety plans, drills, and training programs that include inservice
- 8 training on the use of the device for building staff and first responders.
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10 **Section 2.** Section 50-61-106, MCA, is amended to read:

11 **"50-61-106. Unlawful to obstruct fire exit.** ~~It~~ Except as provided in [section 1], it is unlawful to

12 obstruct in any manner any fire exit, or any hallway, corridor, or entranceway leading to a fire exit, required by

13 rules adopted by the department of justice."

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15 NEW SECTION. **Section 3. Codification instruction.** [Section 1] is intended to be codified as an

16 integral part of Title 50, chapter 61, part 1, and the provisions of Title 50, chapter 61, part 1, apply to [section 1].

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18 NEW SECTION. **Section 4. Effective date.** [This act] is effective on passage and approval.

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